

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 579

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO JUSTIFIABLE HOMICIDE; AMENDING SECTION 18-4009, IDAHO CODE, TO
REVISE A PROVISION REGARDING JUSTIFIABLE HOMICIDE; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-4009, Idaho Code, be, and the same is hereby
amended to read as follows:

18-4009. JUSTIFIABLE HOMICIDE BY ANY PERSON. (1) Homicide is justifi-
able when committed by any person in any of the following cases:

(a) When resisting any attempt to murder any person, or to commit a
felony, or to do some great bodily injury upon any person;

(b) When committed in defense of habitation, a place of business or
employment, occupied vehicle, property or person, against one who
manifestly intends or endeavors, by violence or surprise, to commit a
felony, or against one who manifestly intends and endeavors, in a vio-
lent, riotous or tumultuous manner, to enter the habitation, place of
business or employment or occupied vehicle of another for the purpose of
offering violence to any person therein;

(c) When committed in the lawful defense of such person, or of ~~a wife
or husband, parent, child, master, mistress or servant of such person~~
another person, when there is reasonable ground to apprehend a design to
commit a felony or to do some great bodily injury, and imminent danger of
such design being accomplished; but such person, or the person in whose
behalf the defense was made, if he was the assailant or engaged in mor-
tal combat, must really and in good faith have endeavored to decline any
further struggle before the homicide was committed; or

(d) When necessarily committed in attempting, by lawful ways and means,
to apprehend any person for any felony committed, or in lawfully sup-
pressing any riot, or in lawfully keeping and preserving the peace.

(2) For purposes of subsection (1) (b) of this section, a person who un-
lawfully and by force or by stealth enters or attempts to enter a habitation,
place of business or employment or occupied vehicle is presumed to be doing
so with the intent to commit a felony.

(3) For purposes of this section:

(a) "Habitation" means any building, inhabitable structure or con-
veyance of any kind, whether the building, inhabitable structure or
conveyance is temporary or permanent, mobile or immobile, including a
tent, and is designed to be occupied by people lodging therein at night,
and includes a dwelling in which a person resides either temporarily or
permanently or is visiting as an invited guest, and includes the cur-
tilage of any such dwelling.

1 (b) "Place of business or employment" means a commercial enterprise or
2 establishment owned by a person as all or part of the person's liveli-
3 hood or is under the owner's control or under control of an employee or
4 agent of the owner with responsibility for protecting persons and prop-
5 erty and shall include the interior and exterior premises of the place
6 of business or employment.

7 (c) "Vehicle" means any motorized vehicle that is self-propelled and
8 designed for use on public highways to transport people or property.

9 SECTION 2. An emergency existing therefor, which emergency is hereby
10 declared to exist, this act shall be in full force and effect on and after
11 July 1, 2026.